Processing Agreement (Verwerkersovereenkomst)

This agreement belongs to the Partnership Trial Agreement between Lead Awaker and Robben Rosmalen. Under the trial, Lead Awaker handles personal data of Robben Rosmalen's customers. This document sets out how, as the GDPR (AVG, Article 28) requires.

1. Who

- **Robben Rosmalen B.V.**, represented by Thijs Robben, KvK 95648976, Afrikalaan 17a, 5232 BD 's-Hertogenbosch. The **controller**: Robben Rosmalen decides why and how its customers' data is used.
- **Lead Awaker**, Gabriel Barbosa Fronza ("Gabriel"), trading as Lead Awaker, KvK 99366738, Christiaan Huygensweg 32, 's-Hertogenbosch. The **processor**: Lead Awaker handles the data only on Robben Rosmalen's behalf.

2. What the processing is for

Lead Awaker runs an AI assistant for Robben Rosmalen that:

- answers phone calls;
- answers WhatsApp messages and the chat window on robbenrosmalen.nl;
- answers questions about the cars in stock and the business;
- books viewings and test drives;
- takes messages, and passes callers on to Robben Rosmalen;
- sends callers a follow-up message after a call (WhatsApp, or SMS when the caller has no WhatsApp);
- sends Robben Rosmalen a summary of each conversation.

Lead Awaker uses the data for nothing else. In particular, it does not use it to train AI models, sell it, or contact Robben Rosmalen's customers for its own purposes.

3. Whose data, and which data

Whose data: - people who call Robben Rosmalen; - people who send a WhatsApp message; - people who use the website chat; - Robben Rosmalen's own staff, as far as needed to pass calls on (name and phone number).

Which data: - name, phone number and, when given, email address; - recordings and written transcripts of phone calls; - WhatsApp and chat messages, and photos or files a customer sends; - what the customer is looking for (for example a car, a budget, a trade-in vehicle) and any other details they choose to share; - appointments (date, time, what for); - technical details of the conversation (time, duration, the number dialled).

The assistant does not ask for special categories of personal data (such as health or religion) or for BSN or bank details. If a customer shares these on their own initiative, Lead Awaker treats them with the same care and does not use them.

4. What Lead Awaker promises

Lead Awaker:

1. processes the data only to carry out the trial, and on Robben Rosmalen’s instructions. If an instruction would break the law, Lead Awaker says so;
2. keeps the data confidential. Only Gabriel, and anyone who later works for Lead Awaker under a confidentiality obligation, has access;
3. secures the data with appropriate measures (see section 6);
4. helps Robben Rosmalen when a customer wants to see, correct or delete their data, or objects. Lead Awaker passes on any such request it receives directly within 5 working days;
5. helps Robben Rosmalen with security questions, data breaches and, if one is needed, a privacy impact assessment (DPIA);
6. gives Robben Rosmalen the information needed to check that this agreement is kept, and cooperates with a reasonable check.

5. Other parties (sub-processors)

To run the assistant, Lead Awaker uses these services. Robben Rosmalen agrees to them.

Service	What for	Where
OpenAI Ireland Ltd.	The AI that speaks and writes the answers	EU (European data residency)
Telnyx LLC and Telnyx Ireland Limited	Phone numbers, call routing, SMS	EU: call records and recordings stored in Germany; some processing in the US (EU-US Data Privacy Framework and Standard Contractual Clauses)
Meta Platforms Ireland Ltd.	Sending and receiving WhatsApp messages	EU, with transfers to the US
Groq, Inc.	Reading photos customers send, and short supporting AI tasks	US
Resend	Emailing conversation summaries to Robben Rosmalen	US
Cloudflare, Inc.	Secure connection between the internet and Lead Awaker’s server	Worldwide network

Storage: - The database, the CRM and the appointment calendar (Cal.diy) run on Lead Awaker’s own server in the Netherlands. - If Robben Rosmalen connects its own calendar (for example Google Calendar), that calendar falls under Robben Rosmalen’s own agreement with that provider.

Transfers outside the EU: - For services outside the EU, Lead Awaker relies on the EU-US Data Privacy Framework or the European Standard Contractual Clauses. - Lead Awaker has a signed processing agreement with each service, or has accepted its standard terms.

Changes to this list: - Lead Awaker tells Robben Rosmalen at least 14 days before adding or replacing a service. - Robben Rosmalen can object within that time. - If we cannot agree, either of us can end the trial early as the trial agreement describes.

6. Security

Lead Awaker protects the data with, among other things:

- encrypted connections (HTTPS and TLS) for all traffic, including calls between the phone network and the AI;

- personal logins for the CRM. Robben Rosmalen’s login only shows Robben Rosmalen’s data;
- access to the server only for Gabriel;
- regular updates of the server and software;
- telling callers at the start that they are speaking with a digital assistant.

7. Data breaches

If Lead Awaker discovers a data breach that affects Robben Rosmalen’s data, it tells Robben Rosmalen **without undue delay, and at the latest within 48 hours**. It includes what happened, which data and how many people are affected, and what has been done about it.

This gives Robben Rosmalen time to report to the Autoriteit Persoonsgegevens within the 72 hours the law allows, where that is needed. Lead Awaker does not report to the authority or inform customers itself, unless Robben Rosmalen asks it to.

8. How long the data is kept

- **During the trial:** as long as needed to run the assistant and to review calls together.
- **After the trial:**
  - If the trial ends without a follow-up, Lead Awaker deletes all of Robben Rosmalen’s personal data within **30 days**, including at the sub-processors where Lead Awaker controls that.
  - Robben Rosmalen can first ask for an export (for example the list of leads and the call summaries).
  - Lead Awaker confirms the deletion in writing.
- **When the trial continues** under a new agreement, these rules move over to that agreement.

9. Liability and duration

This agreement runs as long as Lead Awaker processes data for Robben Rosmalen. Liability follows the Partnership Trial Agreement. Dutch law applies.

Signed

	Lead Awaker	**Robben Rosmalen**
Name	Gabriel Barbosa Fronza	Thijs Robben
Date		
Signature		